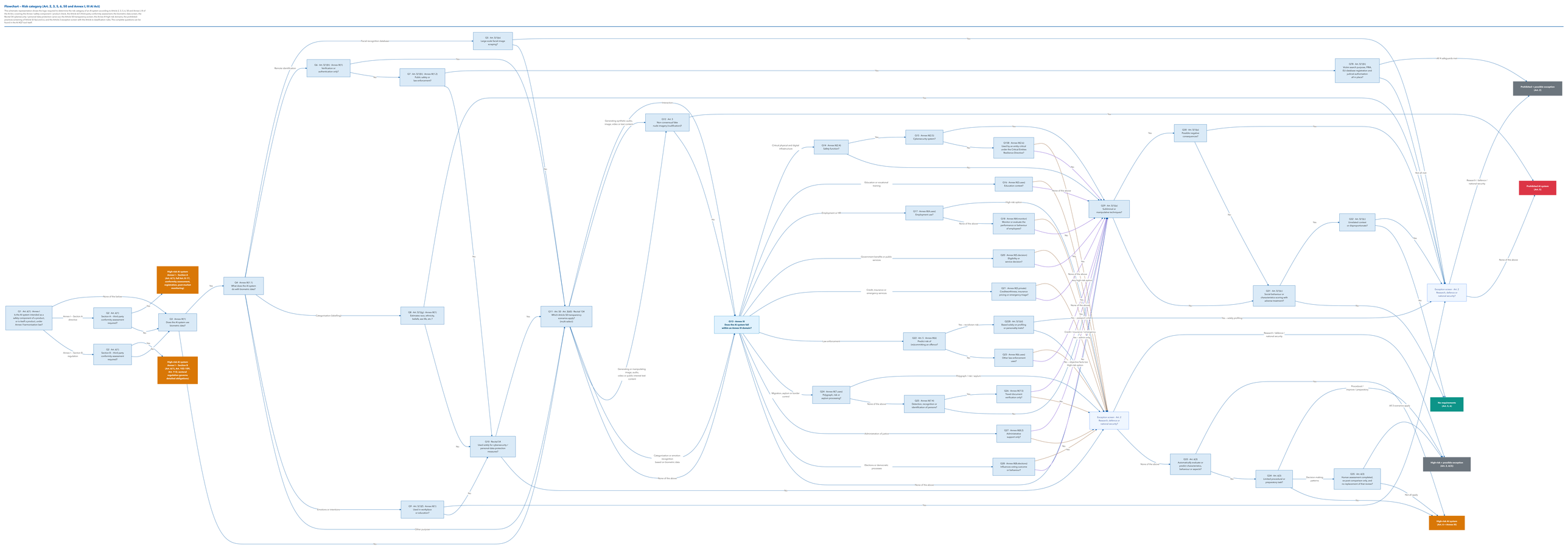

Flowchart – Risk category (Art. 2, 3, 5, 6, 50 and Annex I, III AI Act)

This schematic representation shows the logic required to determine the risk category of an AI system according to Article 2, 3, 5, 6, 50 and Annex I, III of the AI Act, covering the Annex I safety-component / product check, the Article 6(1) third-party conformity assessment, the biometric-data screen, the Recital 54 cybersecurity / personal-data-protection carve-out, the Article 50 transparency screen, the Annex III high-risk domains, the prohibited-practices screening of Article 5(1)(a) and (c), and the Article 2 exception screen with the Article 6 classification rules. The complete questions can be found in the AI AQT tool itself.

Q1 · Art. 6(1) · Annex I
Is the AI system intended as a safety component of a product, or is itself a product, under Annex I harmonisation law?
None of the below
Annex I – Section A directive
Annex I – Section B regulation
Q2 · Art. 6(1)
Section A – third-party conformity assessment required?
Q2 · Art. 6(1)
Section B – third-party conformity assessment required?
Yes
No
Yes
No
High-risk AI system
Annex I – Section A
(Art. 6(1); full Art. 8–17, conformity assessment, registration, post-market monitoring)
High-risk AI system
Annex I – Section B
(Art. 6(1), Art. 102–109, Art. 112; sectoral regulation governs detailed obligations)
Q3 · Annex III(1)
Does the AI system use biometric data?
Yes
No
Q4 · Annex III(1.1)
What does the AI system do with biometric data?
Facial-recognition database
Remote identification
Categorisation (labelling)
Emotions or intentions
Other purpose
Q5 · Art. 5(1)(e)
Large-scale facial-image scraping?
Yes
No
Q6 · Art. 5(1)(h) · Annex III(1)
Verification or authentication only?
Yes
No
Q7 · Art. 5(1)(h) · Annex III(1.2)
Public safety or law enforcement?
Yes
No
Q7B · Art. 5(1)(h)
Victim search purpose, FRIA, EU-database registration and judicial authorisation all in place?
All 4 safeguards met
Not all met
Q8 · Art. 5(1)(g) · Annex III(1)
Estimates race, ethnicity, beliefs, sex life, etc.?
Yes
No
Q9 · Art. 5(1)(f) · Annex III(1)
Used in workplace or education?
Yes
No
Q10 · Recital 54
Used solely for cybersecurity / personal-data-protection measures?
Yes
No
Q11 · Art. 50 · Art. 3(60) · Recital 134
Which Article 50 transparency scenarios apply? (multi-select)
Interaction
Generating synthetic audio, image, video or text content
Generating or manipulating image, audio, video or public-interest text content
Categorization or emotion recognition based on biometric data
None of the above
Q12 · Art. 5
Non-consensual fake nude imagery (nudification)?
Yes
No
Q13 · Annex III
Does the AI system fall within an Annex III domain?
Critical physical and digital infrastructure
Education or vocational training
Employment or HR
Government benefits or public services
Credit, insurance or emergency services
Law enforcement
Migration, asylum or border control
Administration of justice
Elections or democratic processes
None of the above
Q14 · Annex III(2.4)
Safety function?
Yes
No
Q15 · Annex III(2.5)
Cybersecurity system?
Yes
No
Q15B · Annex III(2.6)
Used by an entity critical under the Critical Entities Resilience Directive?
Q16 · Annex III(3.uses)
Education context?
None of the above
Q17 · Annex III(4.uses)
Employment use?
High-risk option
None of the above
Q18 · Annex III(4.monitor)
Monitor or evaluate the performance or behaviour of employees?
Q20 · Annex III(5.decision)
Eligibility or service decision?
Q21 · Annex III(5.private)
Creditworthiness, insurance pricing or emergency triage?
Q22 · Art. 5 · Annex III(6)
Predict risk of (re)committing an offence?
Yes – recidivism risk
No
Q22B · Art. 5(1)(d)
Based solely on profiling or personality traits?
Yes – solely profiling
Q23 · Annex III(6.uses)
Other law-enforcement uses?
Q24 · Annex III(7.uses)
Polygraph, risk or asylum processing?
Polygraph / risk / asylum
None of the above
Q25 · Annex III(7.4)
Detection, recognition or identification of persons?
Yes
No
Q26 · Annex III(7.5)
Travel-document verification only?
Q27 · Annex III(8.2)
Administrative support only?
Q28 · Annex III(8.elections)
Influences voting outcome or behaviour?
No
Yes
None of the above
Any high-risk option
Yes – passport only
Credit / insurance / emergency
Yes – admin only
No – objective facts too
High-risk option
Q29 · Art. 5(1)(a)
Subliminal or manipulative techniques?
Yes
No
Q30 · Art. 5(1)(a)
Possible negative consequences?
Yes
No
Q31 · Art. 5(1)(c)
Social-behaviour or characteristics scoring with adverse treatment?
Yes
No
Q32 · Art. 5(1)(c)
Unrelated context or disproportionate?
Yes
No
Exception screen · Art. 2
Research, defence or national security?
Research / defence / national security
None of the above
Exception screen · Art. 2
Research, defence or national security?
Research / defence / national security
None of the above
Q33 · Art. 6(3)
Automatically evaluate or predict characteristics, behaviour or aspects?
Yes
No
Q34 · Art. 6(3)
Limited procedural or preparatory task?
Procedural / improve / preparatory
Decision-making patterns
No
Q35 · Art. 6(3)
Human assessment completed, ex-post comparison only, and no replacement of that review?
All 3 scenarios apply
Not all apply
Prohibited + possible exception
(Art. 2)
Prohibited AI system
(Art. 5)
No requirements
(Art. 5, 6)
High-risk + possible exception
(Art. 2, 6(3))
High-risk AI system
(Art. 6 + Annex III)